

SENATE BILL 2287

By Lamar

AN ACT to amend Tennessee Code Annotated, Title 68
and Title 71, relative to maternal health.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 5, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Birthing center" has the same meaning as defined in § 68-11-201;

and

(2) "Hospital" has the same meaning as defined in § 68-11-201(31)(A)

and (B).

(b) The bureau of TennCare shall:

(1) Create a methodology to determine medicaid facility fee reimbursement rates for birthing centers that are comparable to rates for similar services provided at a hospital; and

(2) Require annual increases to birthing center medicaid facility fee reimbursement rates that are equivalent to hospital medicaid reimbursement rate increases.

SECTION 2. Tennessee Code Annotated, Title 68, Chapter 1, Part 1, is amended by adding the following as a new section:

(a)

(1) "Birthing center" has the same meaning as defined in § 68-11-201;

and

(2) "Hospital" has the same meaning as defined in § 68-11-201(31)(A) and (B).

(b) In making decisions as to the allocation of the federal rural health transportation program grant funds received by the department from the centers for medicare and medicaid services (CMS), the department of health shall give funding priority to birthing centers in this state, with first priority to birthing centers in rural counties, and second priority to birthing centers in urban counties that provide services to residents of rural counties that do not have a birthing center or hospital with a maternity ward.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.